



U.S. Department
of Transportation

Research and
Special Programs
Administration

APR 15 1999

400 Seventh Street, S.W.
Washington, D.C. 20590

DOT-E 10896
(THIRD REVISION)

EXPIRATION DATE: MARCH 31, 2001

(FOR RENEWAL, SEE 49 CFR § 107.109)

1. GRANTEE: Air Products & Chemicals Incorporated
Allentown, PA
2. PURPOSE AND LIMITATION: This exemption authorizes the transportation in commerce of magnesium hydride mixtures, Division 4.3, Packing Group III, in non-DOT specification packagings. In addition, the motor vehicles used under the terms of this exemption are not required to be placarded with DANGEROUS WHEN WET. This exemption provides no relief from any regulation other than as specifically stated herein.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR Part 172, Subpart F and § 173.213.
5. BASIS: This exemption is based on the application of Air Products and Chemicals, Inc., dated March 4, 1999, submitted in accordance with § 107.109.
6. HAZARDOUS MATERIALS (49 CFR § 172.101):

Proper Shipping Name/Hazardous Materials Description	Hazard Class/Division	Identification Number	Packing Group
Water-reactive solid, n.o.s.--Magnesium hydride mixture	4.3	UN2813	III

For the N.O.S. entries above, the requirements of § 172.203(k) must be met

7. PACKAGING AND SAFETY CONTROL MEASURES:

- a. PACKAGING: Inner packaging: The magnesium hydride mixture must be packaged in a "purifier" which is a vessel constructed of 316L stainless steel capable of withstanding 250 psig. No more than 3.8 kilograms of mixture may be packed in a single purifier and the purifier must be securely closed.

Outer Packaging: A maximum of three purifiers must be securely mounted inside a metal cabinet. The cabinet must be securely closed during transportation.

- b. PLACARDING - The requirement for DANGEROUS WHEN WET placards is waived.

8. SPECIAL PROVISIONS:

- a. A person who is not a holder of this exemption who receives a package covered by this exemption may reoffer it for transportation provided no modifications or changes are made to the package and it is reoffered for transportation in conformance with this exemption and the HMR.
- b. A current copy of this exemption must be maintained at each facility where the package is offered or reoffered for transportation.
- c. MARKING - The outer cabinet must be marked "DOT E-10896".

9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle and cargo aircraft only.10. MODAL REQUIREMENTS: A current copy of this exemption must be carried aboard each aircraft or motor vehicle used to transport packages covered by this exemption. The shipper shall furnish a copy of this exemption to the air carrier before or at the time the shipment is tendered.11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this exemption and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:

- o All terms and conditions prescribed in this exemption and the Hazardous Materials Regulations, 49 CFR Parts 171-180.

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- o Registration required by § 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this exemption must receive training on the requirements and conditions of this exemption in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this exemption, including display of its number, when the exemption has expired or is otherwise no longer in effect.

12. REPORTING REQUIREMENTS: The carrier is required to report any incident involving loss of packaging contents or packaging failure to the Associate Administrator for Hazardous Materials Safety (AAHMS) as soon as practicable. (Sections 171.15 and 171.16 apply to any activity undertaken under the authority of this exemption.) In addition, the holder(s) of this exemption must inform the AAHMS, in writing, of any incidents involving the package and shipments made under the terms of this exemption.

Issued at Washington, D.C.:

Alan I. Roberts

for Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

4/15/99
(DATE)

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Research and Special Programs Administration, Department of Transportation, Washington, D.C. 20590.
Attention: DHM-31.

The original of this exemption is on file at the above office. Photo reproductions and legible reductions of this exemption are permitted. Any alteration of this exemption is prohibited.

Copies of exemptions may be obtained from the AAHMS, U.S. Department of Transportation, 400 7th Street, S.W., Washington, DC 20590-0001, Attention: Records Center, 202-366-5046.

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